

TO: *Honorable Pete Hegseth, Secretary of War*
FROM: *Oluwapelumi Adeola Igbalajobi, Chief Digital and Artificial Intelligence Officer.*
SUBJECT: *Establishing U.S. Policy on the Use of Artificial Intelligence in Autonomous Military Targeting Systems.*
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Executive Summary

This memo examines whether the U.S. should revise its policy governing the use of Artificial Intelligence in autonomous military targeting systems. While AI-enabled systems can enhance speed and accuracy, they also raise ethical, legal, and accountability issues.

DoW Directive 3000.09 requires “human judgment in the use of force”, but it does not clearly define how or when humans must be involved. As AI capabilities advance, this lack of clarity creates oversight gaps.

This memo recommends that the Department of War adopt a strengthened human-in-loop policy that clearly defines and enforces human control over lethal targeting decisions. This approach preserves operational effectiveness while reducing risks to civilians and ensuring accountability.

Background

Artificial intelligence increasingly supports military targeting systems, enabling faster decision-making, improved surveillance, and enhancing operational efficiency, particularly in complex or communications-degraded [environments](#). These systems process large amounts of data and can function with varying autonomy once activated.

Under DoW Directive 3000.09, autonomous systems are defined as “systems that can identify and engage targets independently after activation, while still allowing for human judgment in the use of [force](#).”([CRS](#) Library of Congress). However, the directive does not clearly specify the level or timing of human involvement in practice.

The U.S. does not prohibit lethal autonomous weapons, and Congress has expanded oversight by requiring regular reporting on their development and deployment through [2029](#). As technology evolves, there is a gap between current policies and modern AI military systems.

Given these gaps, the DoW must decide whether to maintain the current framework, strengthen human control requirements, or prohibit fully autonomous lethal systems.

Available Options

- **Option 1: Maintain Current Policy Framework (DoD Directive 3000.09 Status Quo)**

This option would retain the existing policy, allowing the DoW to continue developing and deploying AI-enabled targeting systems under the current standard of “appropriate levels of human judgment.” It is supported by military leaders, defense technologists, and the national security stakeholders, who prioritize operational flexibility and continued innovation, and maintaining a technological edge over adversaries.

- Pros:

1. It preserves flexibility in high-speed combat environments and avoids disrupting ongoing military programs.
2. It enables the U.S. to continue advancing AI capabilities without additional constraints, supporting competitiveness against adversaries investing heavily in autonomous systems.
3. It avoids disrupting ongoing military programs and investments in AI-enabled systems.

- Cons:

1. It does not clearly define the level or timing of human involvement, creating ambiguity for commanders and operators and increasing the risk of inconsistent implementation.
2. It increases the risk of inconsistent implementation, accountability gaps, particularly in cases of wrongful targeting, and heightens the risk of civilian harm.

Maintaining this option would sustain short-term technological and strategic advantages, but it creates long-term risks, including reputational damage, weakened U.S. leadership in shaping global AI governance norms, and instability if unclear decision-making contributes to unintended escalation.

- **Option 2: Strengthen Human Control Requirements (Human in the Loop Policy)**

This option would revise existing policy to require clearly defined and enforceable human involvement in all AI-enabled targeting decisions, ensuring that humans retain authority over the use of lethal force. It is supported by policymakers who argue that human judgment must remain central in decisions involving lethal force, along with legal experts, AI ethics scholars, U.S. allies, and parts of the defense community seeking stronger accountability and clearer governance standards.

- Pros:

1. It strengthens accountability by keeping humans directly responsible for targeting decisions.
2. It supports compliance with international humanitarian law, particularly the principles of distinction and proportionality, and reduces the risk of civilian harm and unintended escalation.
3. It enhances U.S. credibility and positions the U.S. as a leader in responsible AI governance.

- Cons:

1. It would slow decision-making in fast-paced or contested environments and could limit operational efficiency in certain scenarios.

2. It would require additional cost for updating existing systems, military doctrine, and investing in training and oversight mechanisms.

If implemented, this option balances military effectiveness and ethical responsibility. However, weak implementation could lead to superficial oversight or overreliance on AI systems. Adversaries that deploy fully autonomous systems may also gain short-term tactical advantages.

Option 3: Ban Fully Autonomous Lethal Weapons and Support an International Ban

This option prohibits the development and deployment of fully autonomous lethal weapons and commits the U.S. to supporting an international ban. It is supported by human rights organizations, international advocacy groups, and policymakers who argue that machines should not make life and death decisions.

- Pros:

1. It establishes a clear ethical standard by ensuring human control over all uses of lethal force.
2. It strengthens U.S. moral credibility and supports the development of international norms governing AI in warfare.
3. It reduces the risk of unintended escalation associated with autonomous systems operating without human intervention.

- Cons:

1. It would limit U.S. military innovation and require scaling back advanced AI programs.
2. It would become difficult to enforce if adversaries do not adopt similar restrictions, raising concerns about strategic imbalance and the potential loss of technological leadership in military AI development.
3. It would require sustained diplomatic effort to build international agreement.

If widely adopted, it could reduce long-term risks and strengthen global governance. However, if key actors do not comply, the U.S. would face a strategic disadvantage as adversaries continue to develop autonomous capabilities. This asymmetry could weaken deterrence and reduce U.S. military effectiveness. Enforcement challenges also make compliance uncertain, creating a trade-off between ethical clarity and strategic risk.

Analysis and Recommendation

The DoW should choose Option 2, strengthening human control through a clear human-in-the-loop policy. This option best addresses AI-enabled targeting challenges by ensuring accountability while maintaining operational advantages.

Option 2 directly resolves the core weakness of the current framework, which is ambiguity. The existing requirement for “appropriate levels of human judgment” is open to interpretation, creating inconsistent implementation and unclear responsibility in high-stakes decisions. A strengthened

policy establishes clear standards and ensures that human judgment remains central in decisions involving the use of force and reduces the risks of error, civilian harm, and unintended escalation.

This option avoids the strategic limitations of a complete ban. A prohibition on fully autonomous lethal systems is difficult to enforce and unlikely to be adopted by U.S. adversaries, creating a risk of strategic imbalance. Option 2 allows the DoW to continue advancing AI capabilities while maintaining clear ethical boundaries, ensuring that the U.S. remains competitive without sacrificing accountability.

The risks with this option are manageable. While increased human involvement may slow decision-making in some operational contexts, the DoW can mitigate these effects through clear protocols and integration with AI-supported decision tools. The DoW can also address the risk of superficial oversight by implementing enforceable standards, strengthening training, and enforcing accountability mechanisms. These challenges are more limited and controllable than the systemic risks of the status quo and the strategic constraints of a ban.

Finally, strengthening human control positions the U.S. to lead in shaping global norms on responsible military AI. By aligning innovation with ethical and legal standards, this approach reinforces U.S. credibility and supports long-term strategic stability.

Reference

AI Use: I used Hemingway Editor to improve readability and ensure the use of clear, simple words/language.